



Liberland

Ministry of Justice

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Constitution of Liberland

Preamble

We, the free people of the world, in order to safeguard our rights to life and property, and to secure liberty for ourselves and for future generations, do hereby establish this Constitution of Liberland.

In establishing this Constitution, we seek to institute justice, secure the peaceful resolution of disputes and restrain the abuse of power.

Article I: Statehood of Liberland

Section 1

1. By virtue of people's right to self-determination, as declared in Article 1 of the United Nations Charter, the Nation of Liberlanders, through its duly constituted Government, hereby declares the sovereign and independent State, the Free Republic of Liberland (Liberland).
2. Liberland is founded upon the principles of individual liberty, private property, voluntary exchange, and responsibility for one's actions, subject only to the equal rights of others.
3. [The Universal Principles of Liberty](#), as they stood on the date of adoption of this Constitution, may be consulted as non-binding interpretive guidance where consistent with this Constitution; they shall create no independent authority, obligation, or right.
4. Any further amendment to the Universal Principles of Liberty shall have no force within Liberland unless adopted as an amendment to this Constitution in accordance with the procedures set forth herein.

5. The state form of Liberland shall be that of a constitutional republic rooted in direct meritocracy, embracing such parliamentary elements as align with the Nation's steadfast devotion to the libertarian ideal.
6. Meritocracy under this Constitution is not egalitarian in nature. Differences in authority, influence, and governance that lawfully arise from unequal contribution, responsibility, and ownership, shall not be construed as defects requiring correction.

Section 2

1. The State shall impose no duty, obligation, compliance requirement, or service mandate upon any person or citizen unless the full cost thereof is voluntarily assumed by the State itself or explicitly accepted by the affected party or by another party by free and informed consent.
2. Neither the State nor any institution, office, or initiative thereof shall derive revenue through theft, coercion, or any act equivalent thereto. Accordingly, no compelled taxation, tariff, toll, or mandatory social contribution shall be imposed upon any person under the jurisdiction of this Constitution.
3. The State shall not, by itself or through its agents, contract or assume debt in such a manner as to burden the people, their posterity, or the credit of their Commonwealth.
4. No Central Bank shall be established within Liberland, nor shall the State, by any act or omission, debase or cause the loss of value of any currency or asset over which it exercises authority or custodianship.
5. In all its dealings, the State shall be bound by this Constitution and shall act solely within the limits herein prescribed. In determining whether an act violates this Constitution, the State shall look to the substance and practical effect of the measure, and not merely to its form or declared purpose.
6. The State shall maintain strict neutrality in all foreign conflicts and disputes, save where its offices may aid all parties in achieving a just and lasting peace.

Section 3

1. The State shall operate through its three distinct Powers: Judiciary, Legislative, and Executive and the independent power of Oversight, as established and defined by this Constitution. Together, these shall constitute the government of Liberland.
2. The Powers of the State are limited, non-exclusive, and exist solely to prevent and remedy aggression, adjudicate disputes, enforce restitution, and defend against external threats where voluntary arrangements prove insufficient.

Section 4

1. The territory known as Gornja Siga constitutes the core territory of Liberland. The territory of Liberland forms a single, indivisible, and sovereign unit. Additional territories may be incorporated into Liberland in accordance with law.
2. No state, entity, or person shall lawfully claim, annex, or exercise sovereignty over any portion of the territory of Liberland unless such a sharing is agreed upon explicitly by Liberland in the form of an international treaty.

Section 5

1. The State of Liberland is constituted as a proprietary civic enterprise belonging to its citizens. State property and governance authority shall be represented, allocated, and exercised through a system of tokenised proprietary titles, as defined by this Constitution and elaborated by law.
2. Such tokenised titles shall confer proportional rights of participation in governance and co-ownership of State assets, according to merit, contribution, and lawful acquisition. No right of governance or control over State property shall arise from residency in its territory alone.

3. Tokenised governance titles constitute private property. They shall be legally protected, transferable, inheritable, and enforceable under this Constitution, and shall not be diluted, revoked, or reallocated except in accordance with law and due process.
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Article II: Foundations of Liberty

Section 1

1. All persons are by nature free and independent, and possess equal standing before the law. Each is endowed with the rights to life, liberty, and the pursuit of happiness.
2. These rights extend to any being of equivalent sapience who demonstrates both the capacity and the will to assume the rights and responsibilities of a free society.
3. Equality before the law shall not be construed to require equality of outcome, condition, or station.

Section 2

1. Every person holds exclusive authority over their own body and mind. This authority constitutes the Right to Life and personal autonomy.
2. Each person bears responsibility for their voluntary actions and the foreseeable consequences thereof.
3. No person shall be compelled to act absent lawful justification grounded in this Constitution.

Section 3

1. When a person draws a natural good from its unclaimed state and mingles their labour with it, that good becomes their property.
2. All persons may act freely with their own property or upon property of others only by their consent. No action shall be unlawful unless it constitutes a violation of property, a breach of contract, or fraud resulting in the wrongful deprivation of property, person, or legally protected interest.

3. The owner of property possesses the exclusive right to use, alter, transfer, or dispose of it, subject only to the equal rights of others and to obligations arising from voluntary agreement or restitution. This power of transfer shall not extend to the permanent alienation of one's own person or the surrender of inalienable personal autonomy.
4. None shall act upon another's property without the owner's consent, nor exceed the bounds of the consent given.
5. The right to exclude others from property, territory, or association is an essential incident of ownership. No person may claim access, residence, or participation absent the consent of the rightful owner or governing proprietary body.
6. Consent shall be voluntary, informed, and clearly manifested. Mere inaction or ambiguity shall not, by itself, constitute consent.
7. Abandonment—manifested plainly by word or deed—dissolves the rights of the former owner.

Section 4

1. A willing and uncoerced transfer from a rightful owner vests property in the receiver as surely as original labour invests it in the first possessor. None shall pass on that which they do not rightfully own.
2. All shall honour the clearly expressed will of a property's owner, where it concerns only what is lawfully theirs.
3. Joint ownership arises by the common will of co-owners, who thereby establish rules for their shared property and lay the foundations for common enterprises.
4. The right to innovate and trade, upon one's own property or by permission upon another's, is inalienable, as it is essential to the pursuit of happiness.

Section 5

1. No person shall be held in slavery or involuntary servitude, except pursuant to a final judicial determination imposing temporary and proportionate restrictions upon liberty or compulsory service solely as restitution for proven aggression under this Constitution.
2. Any condition or relationship that substantially and permanently deprives a person of their liberty or autonomy without ongoing and revocable consent shall be unlawful.
3. Any agreement, consent, contract, debt, vow, or status that establishes, sustains, or results in slavery or involuntary servitude is void ab initio and shall give rise to no lawful obligation, except where temporary and proportionate compulsory service is imposed by final judicial determination solely as a means of restitution for proven aggression.
4. A person released from slavery or involuntary servitude shall be restored to full liberty and shall be entitled to proportional restitution and damages for all losses, labour, or property unjustly extracted during the period of enslavement.
5. Wherever slavery or involuntary servitude is found within the jurisdiction or effective reach of the State, the State shall act proactively and with utmost urgency to terminate such condition and to secure restitution for the enslaved.

Section 6

1. To infringe upon another's property without cause is to assault their dignity in aggression, for property arises from one's finite time, labour, and life itself. The sanctity of property is therefore inseparable from the sanctity of the person.
2. An action shall be deemed aggressive where it is demonstrated, by clear and convincing evidence, that a direct physical invasion, measurable harm, or wrongful deprivation of a person, property, or legally protected interest has occurred. Such deprivation

includes harm resulting from fraud, defined as intentional deception that induces reliance and thereby causes involuntary transfer, loss, or measurable impairment of property, contractual rights, or exclusive control over valuable information or knowledge lawfully possessed by another.

3. Whosoever suffers injury to their property by aggression of another shall have the right to seek full and proportional restitution from the wrongdoer's own transferable property, and where insufficient, through temporary and proportionate restrictions upon the wrongdoer's liberty as determined by a court, even against that person's will. Such restitution shall serve both to repair the harm done and to deter future trespass.
 4. No act of just restitution shall be deemed an offense under this Constitution, nor shall any authority obstruct or punish one who rightfully seeks recompense within just measure.
 5. Every person possesses the inherent right to defend their property and person against aggression. The use of force necessary to repel an attack shall not be deemed unlawful, provided it is not clearly disproportionate to the threat faced.
 6. Should grievous harm or death befall the aggressor in consequence of their own unlawful act, the moral and legal burden shall rest solely upon the aggressor. For justice demands that each bear the fruits of their own deeds.
 7. All rights protected under this Constitution are reducible to, and enforceable only through, demonstrable claims of ownership, consent, contract, or restitution. No abstract principle shall give rise to legal obligation absent a corresponding invasion of property.
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Article III: Judicial Power

Section 1

1. To adjudicate disputes concerning harm to persons, invasions of property, breaches of contract, or failures of restitution, courts are hereby established to judge fairly and equitably.
2. All courts shall be independent at all times and shall pursue the interests of justice only.
3. The Judicial Power shall have jurisdiction over all disputes arising under this Constitution and the Law of Liberland within Liberland's domain.
4. The courts shall follow carefully this Constitution and the Law of Liberland, and shall heed the wisdom of their own settled judgments.
5. Whenever a law stands at odds with this Constitution, the Constitution shall prevail; the court may set aside any provision of any law that cannot be reconciled with the Constitution by reasonable and good faith interpretation.
6. Courts shall neither create new offenses nor extend aggression beyond the constitutional principles of ownership, consent, contract, fraud, and restitution.
7. In applying this Constitution, courts may interpret these principles in light of new factual circumstances, provided such interpretation remains faithful to the text, structure, and original spirit of the Foundations of Liberty and does not establish new categories of aggression inconsistent with the Non-Aggression Principle.

Section 2

1. There shall be one Supreme Court of Liberland. It is the highest forum for the resolution of disputes arising under this Constitution, subject always to the limits herein imposed.

2. All political disputes involving the application of this Constitution by organs founded under this Constitution shall be brought before the Supreme Court.
3. Such inferior courts as the people may establish shall exist under the Supreme Court's appellate and supervisory authority.
4. All courts shall follow their own settled jurisprudence and that announced by higher courts.
5. Departure from settled precedent shall be permitted only upon reasoned demonstration that such precedent is manifestly erroneous, incompatible with this Constitution, or rendered obsolete by materially changed circumstances, or that the circumstances of the case are fundamentally distinct from it.
6. The State shall recognize and encourage private courts and tribunals chosen by consent of the parties, including those applying divergent bodies of law, provided they honor due process, the Foundations of Liberty declared herein, and the controlling jurisprudence of the Supreme Court. Their awards and judgments shall be enforceable by the public courts except where contrary to this Constitution or public order.
7. No person shall be compelled to submit a civil dispute to a public court where all parties have voluntarily agreed to binding private adjudication, except for the enforcement of restitution or protection against aggression.
8. Public courts shall function as forums of last resort. Wherever parties have provided for private adjudication by contract or custom, such arrangements shall prevail absent demonstrable violation of property rights or procedural fraud.
9. No private court or tribunal may claim authority to interpret this Constitution in a manner binding beyond the parties to the dispute. Final and general authority over constitutional interpretation rests exclusively with the Supreme Court.

Section 3

1. Let no person be charged with a crime unless the State demonstrates a clear violation of the Non-Aggression Principle, or a direct and substantial attempt, solicitation, conspiracy, or preparatory act directed toward such violation, together with the existence of an identifiable victim or a specifically identifiable class of prospective victims.
2. An attempt shall be punishable only where the accused has intentionally taken a substantial step toward the commission of aggression and the danger of harm was immediate, concrete, and not merely speculative.
3. Conspiracy or solicitation shall be punishable only where it is shown by clear and convincing evidence that the accused intentionally entered into, organised, or urged a concrete plan for aggression likely to result in wrongful harm to person or property.
4. Preparatory conduct alone shall not be punishable unless it creates a demonstrable and imminent threat to identifiable persons, property, or legally protected interests, and no less restrictive lawful means would suffice to prevent the threatened harm.
5. No offense shall arise from mere belief, association, opinion, status, or abstract advocacy unconnected to intentional and concrete steps toward aggression.
6. In all such cases, the measures imposed shall remain proportionate to the gravity, immediacy, and proof of the threatened or attempted aggression, and shall prefer prevention, restraint, security, or restitution over punishment for its own sake.

Section 4

1. Any accused person shall have the right to confront their accuser and be fully apprised of the nature and extent of the accusation.
 2. The Judiciary shall ensure that the accused shall, without delay, be informed of their rights under this Constitution, the gravity of the charge, and its possible outcomes.
 3. Recognising that not all possess the same abilities or resources, the accused shall be granted sufficient time and opportunity to secure whatever counsel they deem necessary.
 4. Where multiple measures are available to secure restitution or prevent further aggression, those that are cruel or humiliating shall be avoided in favor of equally effective alternatives. No death penalty shall ever be imposed in Liberland.
 5. Nothing herein shall prohibit firm, compulsory, or liberty-restricting measures that are proportionate to proven aggression and necessary to secure restitution or protect others from harm.
 6. People shall remain secure in their persons, homes, papers, and effects, free from unreasonable searches or seizures.
 7. No Warrant shall issue save by Judicial Order, grounded in probable cause, and naming clearly the place to be searched and the persons or things to be seized.
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Article IV: Citizenship and Legislative Power

Section 1

1. Instruments of legislation may be enacted under this Constitution to render the application of the Non-Aggression Principle—and all human interactions—consistent, impartial, and predictable, thereby reducing breaches of that Principle arising from error, ignorance, or fear.
2. These instruments, together with the settled jurisprudence of courts established under this Constitution, shall constitute the Law of Liberland.
3. Such instruments of legislation shall concern only those matters essential to the preservation of liberty and justice:
 - a. the protection of life, liberty, and property;
 - b. the prevention and redress of fraud, coercion, and violence;
 - c. the enforcement of voluntary contracts and lawful obligations;
 - d. and the fair adjudication of disputes arising therefrom.
4. They shall not extend to the management of personal morals, industry, commerce, belief, or any other domain wherein no aggression is committed.
5. Only those who are bound to Liberland by enduring allegiance and contribution to its destiny shall possess the power to make, repeal, or amend such instruments of legislation. These shall be the Citizens of Liberland.
6. No instrument of legislation shall create duties, prohibitions, or liabilities except as necessary to specify, enforce, or remedy rights arising from property ownership, voluntary contract, or restitution for aggression.

Section 2

1. Citizenship in Liberland shall be conferred upon those who pledge loyalty to this Constitution and its Principles and demonstrate a sincere commitment to the Nation.
2. Before attaining citizenship, each applicant shall solemnly pledge to Liberland and its national community that they shall not seize the property of others against their will, whether by their own means or through the instruments of the State.
3. A citizen may renounce their citizenship at will. Should the Law of Liberland provide a procedure for renunciation, it shall be straightforward and free of undue restriction.
4. Where a citizen commits egregious or repeated violations of the Non-Aggression Principle, the Judiciary may, as a measure of last resort, order exclusion from the territory of Liberland or from specified jurisdictions therein, subject to proportionality and due process.

Section 3

1. Laws are the highest instruments of legislation subordinate only to this Constitution. Binding jurisprudence of the courts interprets and applies such Laws and this Constitution.
2. No right or duty of any person shall be created, altered, or extinguished except by this Constitution, by law, or by binding judicial determination grounded therein.
3. All persons shall remain free to act as they will unless expressly prohibited by law or by judicial order enforcing restitution or preventing aggression.
4. The State shall operate strictly within the confines of this Constitution and the Law of Liberland. All powers or actions not expressly granted or permitted to the State by this Constitution or by law are forbidden.

Section 4

1. No law shall be established without a meritocratic Referendum of All Citizens, which shall be the most potent instrument of rulemaking in Liberland and the foundation of its Legislative Power.
2. The Referendum shall decide all matters by meritocratic vote. The particulars of the Referendum's operations shall be defined by the Law of Liberland.
3. For the purposes of this Constitution, meritocratic vote means a voting system in which the weight of a citizen's vote may vary only according to criteria of contribution, responsibility, competence, or sustained service to Liberland that are:
 - a. publicly known in advance;
 - b. general and impersonal in application;
 - c. objectively verifiable;
 - d. reasonably accessible to all citizens on equal legal terms; and
 - e. not designed or applied so as to create an arbitrary hereditary political privilege or arbitrary exclusion.
4. No law governing meritocratic voting shall assign or alter voting weight retroactively, nor discriminate by race, sex, ethnicity, religion, opinion, lineage, or other status unrelated to demonstrable contribution, responsibility, competence, or sustained service to Liberland.
5. Every citizen shall retain at least one equal base vote in every Referendum, and any merit-based weighting shall be supplemental thereto and bounded by limits established by law.
6. Any citizen shall have standing to challenge before the Supreme Court the constitutionality of any law or act governing the allocation, calculation, suspension, or exercise of meritocratic voting weight.
7. A special form of referendum, designed to safeguard the equality of all citizens, shall be established and vested with binding authority. This instrument, to be known as the

Public Veto, shall be exercisable solely for the repeal of legislation or the removal of public officials from office. It shall not be used to enact laws, confer powers, or appoint officials.

Section 5

1. Legislative authority originates solely with the citizens. Representative bodies may exercise delegated functions of preparation, coordination, and administration, but shall not replace or override the authority of the Referendum.
2. Citizens shall never be forced to delegate their rulemaking authority, yet representative bodies may be formed for efficiency and ease of governance.
3. Chief among these bodies shall be the Congress of Liberland, with others established by the Referendum.

Section 6

1. Citizens and Congress may propose laws. The Law of Liberland shall elaborate as to the details of this process and likewise the general operations of Congress.
2. Congress may delay or return a proposed Referendum solely to remedy clearly identified formal defects of clarity, coherence, or internal contradiction.
3. Such delay shall be strictly temporary and shall not exceed a period defined by law. Any such action shall be subject to immediate judicial review upon petition of any citizen.

Section 7

1. Congress may adopt decisions, resolutions, appointments, procedural acts, and other non-legislative measures necessary for the exercise of the powers expressly conferred upon it by this Constitution or by law.

2. Such acts shall not require approval by Referendum, provided they do not enact, amend, or repeal law, nor create new duties, prohibitions, or liabilities for any person.
3. All such acts of Congress shall remain strictly subordinate to this Constitution, the Law of Liberland, and any applicable instruments of legislation lawfully adopted thereunder.

Section 8

Congress alone may propose constitutional amendments. Any amendment to this Constitution must gain the approval of at least fifty percent of all voting Citizens in a Referendum, and likewise sixty-five percent of any duly cast voting instruments.

Section 9

1. Congress alone shall hold authority to propose international treaties that confer obligations or rights upon persons under this Constitution, or alter Liberland's membership or status in international bodies.
2. Once lawfully adopted in accordance with this Constitution, such treaties shall form part of the Law of Liberland.
3. No treaty, convention, or rule of international law shall have effect within Liberland to the extent that it cannot be reconciled, by reasonable and good faith interpretation, with this Constitution.
4. Liberland shall interpret and perform its international obligations in good faith. No organ of the State shall invoke ordinary law, administrative convenience, or subordinate legislation as grounds to evade, frustrate, or nullify a treaty lawfully adopted under this Constitution.
5. Where a proposed treaty would require a departure from this Constitution, such treaty shall not be ratified unless the necessary constitutional amendment is first or simultaneously adopted in accordance with this Constitution.

6. The Supreme Court shall have final authority to determine whether and to what extent a treaty provision is compatible with this Constitution, but every reasonable presumption shall be made in favour of compatibility where such interpretation is textually and structurally defensible.

Section 10

1. Congress shall nominate Judges, including the Justices of the Supreme Court, for appointment by the President. Only those so nominated and appointed shall exercise judicial authority.
 2. The Supreme Court shall consist of no fewer than three Justices, one of whom shall be designated as Chief Justice.
 3. All Judges of Liberland, including the Justices of the Supreme Court, shall be persons of established legal expertise, distinguished professional competence, and unimpeachable moral character, with a demonstrated record of sound and successful adjudication.
 4. Congress may establish inferior courts and shall nominate Judges thereto in accordance with this Constitution.
 5. Congress may, by Decision, initiate impeachment proceedings against a Judge whose sustained performance or personal conduct fails to meet the moral or professional standards required by judicial office. The President shall decide upon such impeachment and, where appropriate, order the removal of the Judge from office.
 6. Any decision of the President removing a Judge pursuant to impeachment shall be subject to review by the Supreme Court solely for procedural regularity and conformity with this Constitution.
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Article V: Executive Power

Section 1

1. Congress shall appoint the Prime Minister, who serves as the supreme manager of the day-to-day affairs of Liberland, and hence as the Head of its Executive Power.
2. The term of office of the Prime Minister shall be five (5) years.
3. Congress may dismiss the Prime Minister at will, by the same or a higher majority that appointed them.
4. The Prime Minister shall exercise no authority to create, amend, suspend, or interpret law, and shall act solely to execute law and binding judicial decisions within the limits of this Constitution.
5. All persons exercising public authority under this Constitution, whether elected, appointed, or otherwise empowered, shall be fully subject to this Constitution, the Law of Liberland, and the jurisdiction of its courts.
6. No public office shall confer immunity from personal liability for aggression, fraud, or other violations of this Constitution, except as strictly necessary for procedural independence as defined by law.

Section 2

1. The Prime Minister shall appoint four Ministers from among the finest proven experts in their fields. These, together with the Prime Minister and any further unpaid advisors as may be appointed or dismissed by the Prime Minister, shall constitute the Cabinet of Liberland, its supreme executive organ.
2. These are the Minister of Finance, the Minister of Foreign Affairs, the Minister of Interior, and the Minister of Justice, each overseeing their respective branch of the Executive.

3. Ministers shall be appointed for a term of 5 years. Where a seat of a Minister becomes vacant, the Prime Minister shall be responsible for appointing a new Minister without delay.
4. Congress may dismiss a Minister at will by the same or higher majority that appointed the Prime Minister who appointed that Minister. Where a motion of dismissal is initiated by the Prime Minister who appointed the Minister, a simple majority shall suffice. Such dismissal shall not relieve the Minister of legal responsibility for acts performed while in office.

Section 3

1. The Minister of Finance oversees State budgets, revenues, and expenditures.
2. The Minister of the Interior secures the execution of justice, prevents and responds to concrete threats to persons or property, and enforces judicial orders relating to breaches of the Non-Aggression Principle.
3. The Minister of Foreign Affairs represents Liberland to the world and is responsible for the fulfilment of Liberland's international obligations.
4. The Minister of Justice steers the creation of norms and the regular application of justice.
5. Where the Prime Minister acts against a final decision of a Minister, the Minister is absolved of any responsibility directly stemming from this decision.

Section 4

1. The Legislative Power, by enacting law, may establish additional organs of governance.
2. Each such organ shall be subsumed and accountable to one Ministry.
3. All bodies of the Executive, including those established according to this Section, may draft instruments of legislation of lesser authority than laws. Such instruments shall adhere to a coherent hierarchy established by law.

4. All instruments of legislation within Liberland shall remain strictly subordinate to this Constitution and to the laws. No rule shall be made except by drawing authority from an existing provision of this Constitution or the law that explicitly permits its creation and governs its operation.
5. Any executive instrument of legislation may be revoked or set aside at any time by law or by judicial determination of inconsistency with this Constitution.

Section 5

1. Law enforcement professionals and other officials shall be trained and hired to maintain order in the land and assist the courts in upholding the Non-Aggression Principle. They shall be called Agents.
 2. Agents stand bound by this Constitution and all laws derived from it; they shall act only under the authority expressly granted by these and by the Executive Power and within limits set by the Judiciary.
 3. They shall be empowered to prevent harm to property and to aid rightful owners in securing proportional restitution against aggressors, both once the courts declare a breach of the Non-Aggression Principle.
 4. Agents shall never bear arms beyond what an ordinary person in Liberland may reasonably possess, so that none be cowed by force of office.
 5. Any Agent who commits aggression or exceeds the authority granted under this Constitution or by law shall be personally liable for restitution and subject to prosecution, without privilege or immunity arising from office.
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Article VI: Independent Regulatory and Oversight Institutions

Section 1

1. Citizens holding shares in the Sovereign Fund of the Republic of Liberland—those who supported the nation when support was most needed—shall be deemed Senators, together forming the Senate of Liberland.
2. The Senate is constituted as a closed proprietary body of exactly 100 seats. Admission thereto may occur only by lawful acquisition of a Senate share. No political process, vote, or office shall confer Senate status absent such ownership.
3. Senate shares constitute private property. They shall be freely alienable, may be inherited, pledged, or transferred by lawful means, and shall not be subject to dilution, confiscation, or compulsory redistribution. No authority under this Constitution may create additional Senate shares or otherwise alter their proportional weight.
4. The Senate shall wield strictly negative powers only. It may veto proposed legislation before enactment, suspend or repeal existing laws or generally applicable executive instruments, cancel ongoing Referenda, and dismiss public officials. It shall not annul individual judicial judgments, reopen adjudicated disputes, or impair vested private rights arising from contract, property, or final court decisions.
5. The Senate and each Senator shall have the right to attend any session of the Cabinet or Congress or organs derived from these, request and receive minutes from sessions not attended, and access any documents or materials discussed or handled by these bodies, whether currently or in the past.
6. The Senate shall serve as fiduciary guardian of Liberland's treasury and financial reserves. The Senate may suspend a proposed or ongoing disbursement upon issuing a

reasoned, written objection grounded in demonstrable risk of mismanagement or breach of this Constitution.

7. The Senate shall possess no authority to enact legislation, impose obligations, or originate coercive measures. Its powers are strictly negative and custodial in nature, serving solely to restrain excess, preserve assets, and enforce constitutional limits.
8. Any suspension of disbursement by the Senate shall be temporary in nature and shall lapse automatically unless renewed by a reasoned decision issued at intervals defined by law. Such suspension shall at all times remain subject to judicial review for abuse, arbitrariness, or manifest disproportionality.

Section 2

1. The Senate shall choose from among its members a President, who shall also serve as President of Liberland and Head of State.
 2. The President shall appoint two Vice Presidents from among the Senators, organise the Senate's agenda, and oversee its daily affairs.
 3. The President's term shall last five years to the day, after which it ends by the passage of time.
 4. The President represents Liberland before the international community, grants distinctions and honours, and appoints or dismisses only those officials whose appointment is expressly assigned to the President by this Constitution or by law. No residual or implied appointment power shall be presumed.
 5. In the case of an untimely death or resignation by the President, the Vice President who was sworn in first may assume the role of President, and the other Vice President may appoint a new second Vice President.
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Enactment of this Constitution

1. This Constitution, having been reviewed by Congress, is hereby presented for a Referendum to be ratified by the citizens of Liberland.
2. The Constitution shall attain legal force upon its successful passage in this Referendum and shall retain such force until repealed by a Referendum originated by a Constitutional Convention.